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* **IN THE HIGH COURT OF DELHI AT NEW DELHI**

+ CS(OS) 565/2019 & I.As. 15494/2019, 15495/2019, 1025/2021

SMT. SUMITRA SARKAR

..... Plaintiff

Through: Mr. Abhijeet Sinha, Ms. Rimmi
Bhardwaj & Mr. Sarthak G.,
Advocates.

versus

SH. INDRAJIT RAY & ORS.

..... Defendants

Through: Mr. Priyadarshi Banerjee, Advocate
for D-1.
Mr. Vivek Kumar Tandon, Ms.
Perna Tandon & Ms. Kanika Rothre,
Advocates for D-2 to 4.

CORAM:

HON'BLE MS. JUSTICE NEENA BANSAL KRISHNA

ORDER

13.12.2023

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1. Learned counsels for the parties, on instructions, submits that there is no dispute *inter se* the parties in regard to each party being entitled to 1/6th share of the Property bearing No. J-1982, C.R. Park, New Delhi, approx 233 sq. yards with construction on Ground Floor, 1st Floor, 2nd Floor and 3rd Floor as show in the site plan.

2. in view of the submissions made, the Preliminary Decree is passed declaring each party to be entitled to 1/6th share of the aforesaid property as follows: -

- (i) Smt. Sumitra Sarkar, the plaintiff, is entitled to 1/6th share,
- (ii) Shri Indrajit Ray, the defendant No. 1, is entitled to 1/6th share,

- (iii) Smt. Supriya Sharma, defendant No. 2, is entitled to $1/6^{\text{th}}$ share,
- (iv) Smt. Suchitra Ray, defendant No. 3, is entitled to $1/6^{\text{th}}$ share,
- (v) Smt. Sunanda Mazumdar, defendant No. 4, is entitled to $1/6^{\text{th}}$ share, and
- (vi) Smt. Shikha Sengupta, defendant No. 5, is entitled to $1/6^{\text{th}}$ share.

3. List for consideration of mode of partition of the aforesaid property by metes and bounds on 03.04.2024.


NEENA BANSAL KRISHNA, J

DECEMBER 13, 2023
S.Sharma